

		demonstrate that the proposed order was served on the clients as required by rule 3.1362(d). Moving attorney to give notice.
55	Patricia Long as Trustee for the Finished Barn Family Trust vs. Global Discoveries Ltd., LLC 22-01268095	Motion for Attorney Fees NO TENTATIVE RULING – Parties to appear on Zoom or in-person.
57	Xia vs. Placentia Yorba Linda Unified School District 24-01403405	Demurrer to Amended Complaint & Motion to Strike Portions of Complaint Defendant California Commission on Teacher Credentialing (“Commission”) demurs to the First Amended Complaint (“FAC”) filed by Plaintiffs Ye Ying Xia and Aretha Li. The demurrer is SUSTAINED to the fourth cause of action for failure to exercise reasonable diligence to discharge mandatory duty and the fifth cause of action for waste of taxpayer funds. Plaintiff’s request for judicial notice is denied. The requested documents are not matters for which judicial notice is required or permitted. (See Evid. Code, §§ 451-452.) Should Plaintiff wish to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it on or before June 19, 2026. Plaintiffs are reminded that, when leave to amend is granted upon the sustaining of a demurrer, amendments are limited to the issues addressed in the court’s ruling and generally may not include amendments to causes of action not addressed in the ruling or the addition of new causes of action. (See <i>Community Water Coalition v. Santa Cruz County Local Agency Formation Com.</i> (2011) 200 Cal.App.4th 1317, 1329 [“It is the rule that when a trial court sustains a demurrer with leave to amend, the scope of the grant of leave is ordinarily a limited one. It gives the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all.”].) In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) <u>Compliance with the Government Claims Act</u> In order to pursue a tort claim against a public entity or public employee under California state law, Plaintiffs must establish that they have complied with the claim presentation requirements of the Government Claims Act. (Gov. Code, §§ 945.4, 950.2.) “Before a civil action may be brought against a public entity [or public employee], a claim must first be presented to the public entity and rejected.” (<i>Ocean Servs. Corp. v. Ventura Port District</i> (1993) 15 Cal.App.4th 1762, 1775; Gov. Code, § 950.2.) “[F]ailure to timely present a claim for money or damages to a public entity bars a plaintiff from filing a lawsuit against that

	entity.” (<i>City of Stockton v. Superior Court</i> (2007) 42 Cal. 4th 730, 738 [citation and internal quotations omitted].) Compliance with the claims presentation requirement is an element of a plaintiff’s claim. (<i>State of California v. Superior Court (Bodde)</i> (2004) 32 Cal.4th 1234, 1243-44 [“Timely claim presentation is not merely a procedural requirement, but is ... a condition precedent to plaintiff’s maintaining an action against defendant ... and thus an element of the plaintiff’s cause of action.”] [citation and internal quotation marks omitted].) The Government Claims Act requires plaintiffs to file a written claim with the public entity within six months of the accrual of the cause of action, as a prerequisite to filing a civil claim. (Gov. Code, § 911.2.) The date of accrual is the date of the occurrence of the last fact essential to the cause of action. (<i>Howard Jarvis Taxpayers Ass’n v. City of La Habra</i> (2001) 25 Cal.4th 809, 815, as modified July 18, 2001.) “The date of accrual of a cause of action marks the starting point for calculating the claims presentation period. [Citation.] The general rule for defining the accrual of a cause of action sets the date as the time when, under the substantive law, the wrongful act is done, or the wrongful result occurs, and the consequent liability arises. [Citation.] In other words, it sets the date as the time when the cause of action is complete with all of its elements [citations]—the elements being generically referred to by sets of terms such as wrongdoing or wrongful conduct, cause or causation, and harm or injury [citations]. [Citation.] A cause of action accrues for purposes of the filing requirements of the Tort Claims Act on the same date a similar action against a nonpublic entity would be deemed to accrue for purposes of applying the relevant statute of limitations.” (<i>K.J. v. Arcadia Unified School District</i> (2009) 172 Cal.App.4th 1229, 1239, as modified (May 5, 2009) disapproved of on other grounds by <i>Rubenstein v. Doe No. 1</i> (2017) 3 Cal.5th 903.) The FAC alleges that after receiving the investigation report the School District submitted to California Department of Education, Education Equity Uniform Complaint Procedures Office (“CDE”) in August 2020, Plaintiff Xia felt the need to report the misconduct of the School District’s educators. (FAC ¶ 52.) In September 2020, Plaintiff filed a complaint with the Commission against Mr. McAlindin, Ms. Balde, Mrs. Yaung, Mr. Louie, and Mr. King. (<i>Ibid.</i>) The Commission received Plaintiff Xia’s complaint forms and affidavit on October 5, 2020. (<i>Ibid.</i>) Ms. Giannini, a Commission investigator, investigated Plaintiff Xia’s complaint from November 13 to November 20, 2020. (<i>Id.</i> at ¶ 53.) Plaintiff Xia expressed concerns over Ms. Giannini’s interpretation of the evidence. (<i>Id.</i> at ¶¶ 53, 101.) Ms. Giannini concluded her investigation on November 20, 2020. (<i>Id.</i> at ¶ 53.) On December 23, 2020, the Commission notified Plaintiff Xia that no adverse action was warranted against the individuals named in the complaint. (<i>Ibid.</i>) In March 2021, Plaintiff Xia filed a citizen complaint against the CTC investigator for her failure to conduct a thorough investigation. (FAC ¶ 54.) Plaintiff Xia received a letter dated April 1, 2021 which did not explain the basis for the Commission’s decision, but stated that Plaintiff could resubmit her complaint. (<i>Id.</i>) Plaintiff Xia submitted a second complaint to the Commission against Mr. King, Ms. Yaung, Mr. Louis, Ms.. Blade, and Mr. McAlindin in February 2023. (FAC ¶ 60.) On August 23, 2023, the Commission refused to take adverse action against the individuals against whom Plaintiff Xia complained. (<i>Ibid.</i>) The FAC alleges that Plaintiff believed the CDE’s decision played a key
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	role in the Commission’s rejection of her complaint. (<i>Ibid.</i>) Plaintiffs filed a Government Claim against the Commission with the Office of Risk Insurance Management at the California Department of General Services on November 7, 2023. (FAC ¶ 9.) To the extent Plaintiffs’ causes of action are based on the Commission’s December 23, 2020 and April 1, 2021 decisions, the claims are untimely. On the face of the FAC, the claims are barred because Plaintiffs failed to present a timely written claim to the Commission. The doctrine of equitable tolling “cannot be invoked to suspend [Government Code] section 911.2’s six-month deadline for filing a prerequisite government claim” because “the six-month period of section 911.2 is not a statute of limitations [citation] to which tolling rules might apply.” (<i>Willis v. City of Carlsbad</i> (2020) 48 Cal.App.5th 1104, 1121.) Furthermore, “[a]pplication of tolling to the claims presentation deadline would undercut the public policies and purposes that require that deadline be ‘strict[ly]’ applied.” (<i>Id.</i> at p. 1122.) Plaintiffs have alleged a timely presentation of claims based on the Commission’s August 23, 2023 decision. The Commission contends that the August 23, 2023 decision cannot form a basis for Plaintiffs’ claims because the affidavit upon which the decision is based is similar to the affidavit Plaintiff Xia filed in 2020. The Commission argues that because the alleged wrongful act did not change, the date of accrual remains December 2020. There are no facts alleged in the FAC or any facts of which the Court may take judicial notice to support this contention. Additionally, the case to which the Commission cites, <i>K.J., supra</i>, 172 Cal.App.4th at 1239, does not support this proposition. The demurrer is overruled to the extent it is based on Plaintiffs’ failure to file a timely government claim in connection with the Commission’s August 23, 2023 decision. <u>Fourth Cause of Action for Failure to Exercise Reasonable Diligence to Discharge Mandatory Duty and Fifth Cause of Action for Waste of Taxpayer Funds</u> Plaintiffs concede that they failed to sufficiently allege a mandatory duty by the Commission as well as allege facts to establish that Plaintiffs have standing to bring a taxpayer cause of action. (Opp. at 13:2-3, 14:23-24.) The demurrer is sustained as to the fourth and fifth causes of action. Defendant California Commission on Teacher Credentialing to give notice. Defendant California Commission on Teacher Credentialing (“Commission”) moves to strike the First Amended Complaint (“FAC”) filed by Plaintiffs Ye Ying Xia and Aretha Li in its entirety, paragraphs 104, 109, and 110, and the prayer for relief as to the Commission. The motion is GRANTED in part and DENIED in part. A court may strike out any irrelevant, false, or improper matter inserted in any pleading or strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule or an order of the court. (Code Civ. Proc., § 436.) The October 22, 2024 Minute Order sustained Defendant Placentia-Yorba Linda Unified School District’s demurrer to Plaintiffs Ye Ying Stella Xia and Aretha Li’s Complaint with 15 days leave to amend and ordered the Clerk to give notice.
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		(ROA 88.) The Clerk gave notice of the court’s October 22, 2024 Order to Plaintiffs by mail and electronic mail. (ROA 89.) Because it is not certain that Plaintiffs, who are self-represented, affirmatively consented to electronic service, the court calculates Plaintiffs’ FAC filing deadline using the five-day period associated with notice by mail. (Cal. Rule of Court, Rule 2.251; Code Civ. Proc., § 1010.6.)] Accordingly, Plaintiffs had until November 12, 2024 to file an amended complaint. Fifteen days from October 22, 2024 is November 6, 2024. The five day extension for service by mail brings the filing deadline to November 11, 2024. (Code Civ. Proc., § 1013.) Because November 11, 2024 was a court holiday, the period is extended to November 12, 2024. (Cal. Rules of Ct., rule 1.10, subd. (b).) The motion to strike the FAC in its entirety is denied. Plaintiffs timely filed the FAC. As discussed in the concurrent ruling on the Commission’s demurrer, Plaintiffs have complied with the Government Claims Act with regard to the Commission’s August 23, 2023 refusal to take adverse action against the individuals against whom Plaintiff Xia complained. The motion to strike Plaintiffs’ request for general or special damages is denied. Plaintiffs do not dispute that punitive damages are unavailable against the Commission. The motion to strike is granted to extent punitive damages are sought against the Commission. Defendant California Commission on Teacher Credentialing to give notice.
58	Nasser vs. Cotton Links LLC 22-01276603	Motion for Terminating Sanctions NO TENTATIVE RULING – Parties to appear on Zoom or in-person.
59	Beghtol vs. Saddleback Memorial Medical Center 23-01316589	Motion for Summary Judgment and/or Adjudication The Motion for Summary Judgment and Summary Adjudication brought by Defendant Saddleback Memorial Medical Center is DENIED, in whole. Defendant’s evidentiary objections fail to comply with California Rules of Court rule 3.1354, as they are not consecutively numbered. (Cal. Rules of Court rule 3.1354(b).) Nonetheless, the objections were reviewed and independently consecutively numbered. The Court OVERRULES Objections Nos. 1, 3 through 4 and 6 through 9. The statement from Plaintiff’s Counsel which indicates Exhibit 1 “is a true and correct copy of excerpts of Defendant’s document production,” is sufficient to authenticate the documents as against Defendant. (See ¶2 of Gleason Declaration [ROA No. 266].) Additionally, the statement is supported by sufficient personal knowledge and foundation, given Mr. Gleason is an attorney of record for Plaintiff in this action. (¶1 of Gleason Declaration [ROA No. 266].) Thereafter, while Defendant repeatedly asserts that Plaintiff’s declaration should be dismissed as “uncorroborated and self-serving,” the statements targeted within Objections Nos. 3 through 4 and 6 through 9, adequately describe conduct and experiences <i>by Plaintiff</i>, rather than mere legal conclusions or subjective beliefs.